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Provision of March 21, 2024
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No. 181 of March 21, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, Members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003 (Code regarding
the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of
August 10, 2018, containing "Provisions for the adaptation of
national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD TO the report sent by the Local Police Command of the Municipality of Vieste on
February 26, 2021, which communicated the presence of
a video surveillance system at the accommodation facility named "B&B; Estlevante" located in Vieste
(FG), Vico Toscano No. 1, for which the information pursuant to Article 13 of the Regulation was not
present;

HAVING EXAMINED the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the
Guarantor's Regulation No. 1/2000;

REPORTING Prof. Pasquale Stanzione;

WHEREAS

1. The report received and the preliminary investigation.

By note dated February 26, 2021, the Local Police Command of the Municipality of Vieste reported to
this Authority that it had conducted an inspection at the accommodation facility named "Estlevante
B&B;" located in Vieste (FG), Vico Toscano No. 1, noting the presence of two cameras positioned on
the facade of the building, for which the information pursuant to Article 13 of the Regulation had not
been posted.

Therefore, the Office made a request for information to Ms. XX, the owner of the accommodation
facility, inviting her, pursuant to Article 157 of the Code, to provide useful elements for evaluation,
aimed in particular at clarifying the actual functioning of the cameras and their suitability to identify the
data subjects, as well as compliance with the principles and provisions regarding the protection of
personal data (note of September 13, 2021).

In a communication dated October 8, 2021, the party responded to the aforementioned request for
information, stating that:

- "the installed cameras are operational and abstractly suitable for identifying individuals";
- "the video surveillance system was installed in May 2019. It consists of two cameras. The field of
view of the recordings is limited to the spaces exclusively under my jurisdiction, in front of the access
to my property, excluding any form of recording of public areas, areas of public passage, and zones
belonging to third parties";
- "the system operates from 00:00 to 23:59. The retention time for recorded images has been limited to
24 hours";
- "the data processing is entrusted to me, the owner of the accommodation activity and the borrower of
the property where the video surveillance system is present. The installation of the surveillance system

was necessary to prevent the intrusion of strangers and damage to the structure, as well as to protect the safety of the B&B; clientele.”

With particular reference to the presence of the information notice, the party communicated that:

- “at the time of installation of the video surveillance system (May 2019), although it was carried out for exclusively personal purposes and with a field of view limited to the spaces of my exclusive jurisdiction, I promptly reported its presence with the information notice, pursuant to Article 13 of the Regulation,” so much so that “the Municipal Police, in 2019 and 2020, despite having accessed the property several times, never contested anything in this regard. (...) Therefore, it is highly likely that the posted information notice was removed by some vandal or came off due to adverse weather conditions”;
- “it is believed that, in this case, the provisions of the Privacy Code do not apply, which cannot be invoked when the installation of video surveillance systems is carried out by individuals for exclusively personal purposes.”

2. The initiation of the procedure.

The Office, based on the statements made, proceeded to notify, by note dated December 1, 2021, the act of initiation of the procedure for the adoption of the measures referred to in Articles 58, paragraph 2, and 83 of the Regulation, in accordance with the provisions of Article 166, paragraph 5, of the Code, in relation to the violation of Article 13 and Article 5, paragraph 1, letter a), of the Regulation.

With the defensive writings submitted on December 22, 2021, in accordance with Article 18 of Law No. 689/1981, the party, reiterating that the information notice pursuant to Article 13 of the Regulation had been correctly posted at the time of the installation of the cameras (which took place in May 2019), represented that “The contested absence of the information notice pursuant to Article 13 GDPR (subject of this procedure) must therefore at most be limited to the date of the inspection by the Local Police (February 26, 2021), falling within a period in which, due to the COVID-19 health emergency, the owners...

(...) and the borrower of the Property (...) were unable to reach Vieste and, in any case, the accommodation activity was closed to the public. Therefore, it is highly probable that the noted absence of the originally posted sign is attributable to an accidental event (vandalism and/or weather events), not attributable to the Writer and, in any case, not restorable at that time (due to the restrictions on movement imposed for the COVID-19 health emergency).

The party also reiterated that the regulations concerning the protection of personal data would not apply in this case, by virtue of the so-called “domestic exemption,” as per Article 2, paragraph 2, letter c), of the Regulation. In fact, the processing was carried out “by a natural person in the context of personal or domestic activities.”

In a communication dated 13/02/2024, the party waived the hearing initially requested, “having nothing to add to what has already been represented in the defense writings.”

3. The legal framework of the treatments carried out through video surveillance.

Given that the use of video surveillance systems constitutes a processing of personal data under Article 4, paragraph 1, no. 2, of the Regulation, it is noted that such processing must be carried out in compliance with the general principles contained in Article 5 of the Regulation and, in particular, with the principle of transparency, which presupposes that “data subjects must always be informed that a video surveillance system is in operation. They should be informed in detail about the monitored locations” (thus the Guidelines no. 3/2019 on the processing of personal data through video devices, adopted by the EDPB on 29/01/2020, paragraph 7).

For this purpose, therefore, with particular reference to the treatments carried out through video surveillance systems, it is necessary for the data controller to prepare suitable informative signs according to the indications contained in point 3.1. of the provision on video surveillance - April 8, 2010 [1712680] (in this sense also the FAQs on video surveillance published on the Authority's website) so that data subjects are made “aware that a video surveillance system is in operation.”

Similarly, the aforementioned Guidelines no. 3/2019 clarify that “the most important information must be indicated [by the controller] on the warning sign itself (first level) while additional mandatory details can be provided by other means (second level).”

In particular, “the information should be positioned in such a way as to allow the data subject to easily

recognize the circumstances of the surveillance before entering the monitored area,” in order to “allow the data subject to estimate which area is covered by a camera so as to avoid surveillance or adjust their behavior, if necessary” (no. 110 et seq. of the Guidelines).

It is also provided that “Such information may be provided in combination with an icon to give, in a clearly visible, intelligible, and legibly clear manner, an overview of the intended processing (Article 12, paragraph 7, of the GDPR). The format of the information must adapt to the various locations.”

4. The outcome of the procedure.

At the conclusion of the investigation carried out and based on the statements made by the party during the procedure, it has been established that the video surveillance system installed at the accommodation facility “Estlevante B&B;,” at the time of the verification carried out by the local Police Command of the Municipality of Vieste, was lacking the information required by Article 13 of the Regulation.

Nevertheless, the cameras present on the external facade of the building were active and functioning, as well as suitable for identifying the data subjects (statements made by the party in the note dated 08/10/2021).

The conduct thus described is therefore contrary to the provisions of the Regulation that assign to the data controller the general obligations of transparency and information, through the preparation and provision to the data subjects of a clear and transparent information notice, which informs them about the essential characteristics of the processing itself (Articles 5, paragraph 1, letter a), 12, and 13 of the Regulation).

According to a consistent orientation of the Guarantor, in fact, the information, to be provided at the time the data is collected, must include the most important data such as, for example, the purposes of the processing and the identity of the controller.

Contrary to what has been argued by the party, moreover, the case in question cannot be assessed as a processing carried out by a “natural person for the exercise of activities of an exclusively personal or domestic nature,” with respect to which, as mentioned, the provisions of the Regulation do not apply. The provision of Article 2, paragraph 2, letter c), of the Regulation, to be interpreted restrictively, introduces a limited exemption for domestic activities, which are understood to be “exclusively” those that “fall within the private or family life of individuals” (CJEU, case C-101-01 of 06/11/2023).

Even more clearly, Recital 18 of the Regulation specifies that activities of an exclusively personal or domestic nature are those carried out without establishing a connection with a commercial or professional activity.

In the case at hand, it is indeed evident how the treatment was carried out in the exercise of a commercial activity, specifically the management of a hospitality facility, initially under an individual enterprise. During the proceedings, the business was then transferred to the company Estlevante s.r.l.s., which, by virtue of Article 2560 et seq. of the Civil Code, succeeded in the active and passive relationships of the transferor.

5. Order of injunction.

The Guarantor, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative monetary sanction provided for by Article 83, paragraph 5, of the Regulation, through the adoption of an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out through the surveillance system lacking the information notice, in violation of Articles 5, paragraph 1, letter a) and 13 of the Regulation.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative monetary sanction and its quantification, considering that the sanction must be “effective, proportionate and dissuasive in each individual case” (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been taken into account:

- regarding the nature, gravity, and duration of the violation, the conduct of the data controller has been considered, as well as the responsibility related to the failure to fulfill the obligation to provide information to the data subjects;

- the absence of specific previous violations of the data protection regulations;
- the circumstance that, during the proceedings, the party declared to have prepared new information signs.

In light of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the monetary sanction at €2,000.00 (two thousand) for the violation of Articles 5, paragraph 1, letter a) and 13 of the Regulation. In this context, also considering the type of violation ascertained, it is believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019, the publication of this provision on the Guarantor's website should proceed.

It is finally noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Guarantor, are met.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR declares, pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, the illegality of the processing carried out by Estlevante s.r.l.s., VAT No. 08726210720, based in Trinitapoli (BT), via Germania No. 16, through the use of the surveillance system installed at the "Estlevante B&B;" as stated in the reasoning, for the violation of Articles 5, paragraph 1, letter a) and 13 of the Regulation;

ORDERS

Estlevante s.r.l.s., in the person of the legal representative pro tempore, to pay the sum of €2,000.00 (two thousand) as an administrative monetary sanction for the violation indicated in the reasoning;

ENJOINS

the same to pay the sum of €2,000.00 (two thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is represented that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction within the deadline referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

DISPOSES

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019, the publication of this provision on the Guarantor's website and believes that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, March 21, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei